# Building Legal Muscle

**The need of the hour is to prioritise the appointment of judges and infrastructure to expedite faster justice delivery and reduce the economic impact on citizens**

By KAUSHIK DEKA

**As Arjun Ram Meghwal takes charge as the country's law minister,** the foremost task before his ministry is to fortify what is a crucial pillar of government, both in terms of manpower and infrastructure. The India Justice Report, published in 2023 by Tata Trusts, has found that India has 19 judges per million people (when calculated against sanctioned strength), some 36 years after the Law Commission had in 1987 envisaged 50 judges per million population in a decade. This not only denies the common citizen quick dispensation of justice, but the delays also impacted 0.5 per cent of India's GDP annually, according to a study by Daksh India in 2016. On his first day at work, Meghwal expressed hope that a solution would be found for the issue of the Memorandum of Procedure for the appointment of Supreme Court judges, and the elevation and transfer of high court judges. His ministry has also cleared the National Litigation Policy, which despite being in the works for a decade had not seen the light of day. ■

**ARJUN RAM MEGHWAL, 70 | BJP**
*Minister of State for Law & Justice (Independent Charge)*

**Civil servant to neta** Born in Bikaner, Rajasthan, and married at 13, this son of a non-literate Dalit weaver defied all odds to earn degrees in law and business administration and become a civil servant. The former Rajasthan Administrative Services officer, who was later promoted to the IAS, sought voluntary retirement in 2009 and went on to win his first Lok Sabha election that year

**The achiever** The four-time MP caught national attention in 2015, when, as the BJP's Chief Whip in the Lok Sabha, he cycled to Parliament in his trademark Rajasthani attire. He was first given charge of the law ministry last year. Under his short tenure, the tension between the two wings of governance was not visible in the public sphere



## WHAT NEEDS TO BE DONE

**APPOINTMENT OF JUDGES** In the long run, the government needs to work together with the judiciary to find an effective and efficient mechanism for faster appointment of judges

**BUILDING CONSENSUS** In the short term, a consensual Memorandum of Procedure should be finalised for the appointment of Supreme Court judges and the elevation and transfer of high court judges

**RAISING INFRASTRUCTURE** Strengthening the judicial infrastructure, particularly in the lower courts, should be a priority in order to reduce pendency and backlog of cases

**POLICY MATTERS** The National Litigation Policy, which aims at transforming the government into an efficient and responsible litigant, should be passed in Parliament without any delay

**JUSTICE FOR ALL** The scope of legal services available to the poor should be expanded to guarantee that no citizen is denied the opportunity for justice due to economic or other limitations